Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Confidential Settlement Communications R 408

8 messages

Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com> Wed, Jul 1 at 1:31 PM
To: bnn.cdl@gmail.com <bnn.cdl@gmail.com>

Mr. Nforbi – I am in receipt of your demand letter.

I would like to set up a call with you for the latter part of next week to discuss your claims.

If you are represented by counsel, ethically I cannot speak with you and instead please pass along my contact information.

If you are not represented by counsel, what is your work schedule next week so we can set up a call on Friday? In addition, please provide me with your current employer, when you were employed, and your rate of pay.

Pilot COMPANY

Jon Yarbrough
Director, Associate General Counsel, Employment Law
Jon.Yarbrough@pilottravelcenters.com
cell: 865-722-4110
5508 Lonas Drive / Knoxville, TN 37909

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Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Wed, Jul 1 at 3:12 PM
To: Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com>

Mr. Yarbrough,

Thank you for your response. I am not currently represented by counsel, so I am available to speak with you directly.

I am available all day on Monday, July 6, 2026, as well as Friday, July 10, 2026. Please let me know which date works best for you.

Before we discuss mitigation or employment details, I would like to understand whether Pilot is prepared to make a substantive settlement proposal based on the claims outlined in my June 1 demand letter. Once we have a framework for discussion, I am happy to provide any additional information relevant to damages.

Please let me know which date works for you and whether Pilot is willing to engage in substantive negotiations.

Sincerely,

Brendan Ngwa Nforbi
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Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com> Fri, Jul 10 at 10:21 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Brendan –

I can speak with you this afternoon at 3 EST. I believe you have my cell number.

Also, I want to remind you that you signed an arbitration agreement as part of your employment with the company. I am happy to send you a copy if you don't have one.

Jon

Pilot COMPANY

Jon Yarbrough
Director, Associate General Counsel, Employment Law
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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Wednesday, July 1, 2026 6:13 PM
To: Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com>
Subject: Re: Confidential Settlement Communications R 408

This Message Is From an External Sender This message came from outside your organization. Please use caution when replying with sensitive
information, opening attachments, or clicking links. If you are unsure, please report this using the HoxHunt button.

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Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Fri, Jul 10 at 10:31 AM
To: Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com>

Mr. Yarbrough,

Thank you for your response. I am available at 3:00 PM EST / 12:00 PM PST today. I have your cell number and will be available to take the call.

Regarding the arbitration agreement you referenced: I do not have a copy of any arbitration agreement in my records. Please send me a copy at your earliest convenience.

I remain open to settlement discussions, and I look forward to speaking with you this afternoon.

Regards,

Brendan N.
[Quoted text hidden]

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Fri, Jul 10 at 12:26 PM
To: Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com>

Mr. Yarbrough,

Thank you for our call today. To summarize the damages exposure in this matter:

Economic Damages:

· Past lost wages (January 23 – May 28, 2026): ~$17,280
· Future wage differential (Macy's $21.50/hr vs. Pilot 10,400+
· Lost sign-on bonus: $500
· Lost benefits value: ~$8,500
· Total Economic Damages: ~$42,500+

Statutory Exposure:

· Treble damages under Penal Code § 290.46(j)(4)(A): Up to 3× actual damages
· Civil penalty under § 290.46(j)(4)(A): Up to $25,000
· Emotional distress damages: 150,000 (documented financial hardship, holiday termination, disclosed vulnerability)
· Punitive damages exposure: Willful violation by sophisticated employer
· Attorney's fees: Mandatory if I retain counsel

Total Exposure: $446,000 – $880,000+

To resolve all claims and avoid further litigation, I am prepared to accept $75,000 as a full and final settlement of this matter, inclusive of all claims, provided payment is made by wire transfer within 7 business days of signing the settlement agreement.

This offer is time-limited and expires end of day today, July 10, 2026.

Please confirm your acceptance in writing.

Sincerely,

Brendan
[Quoted text hidden]

Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com> Fri, Jul 10 at 1:44 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Brendan – Attached is a text message I have been provided from your former manager. In checking your employee file, it appears that the position you accepted via text paid at a rate of 21.00 per hour in contrast to your 24.00 per hour GSL position. As I noted in our earlier conversation, you had continued employment and are eligible for rehire. Since there was continued employment available, arguably your lost wages are closer to 3.00 per hour until your Macy's employment. Thus, your back wage claim is substantially lower than anticipated. And if paid $21.50 at Macy's you effectively mitigated any lost wages. Also, I double checked and you did not have any Pilot benefits.

I remain amenable to settling this matter and will increase my offer of settlement to $35,000.00 in exchange for a complete release, waiver of any rights to seek re-employment, and confidentiality. We would be willing to pay 10k of the total 35k as lost wages less withholdings, and the remainder as compensatory damages. We would need an updated address, along with an updated W-4 from you for the tax information and a completed form W-9 for the compensatory

damages. I can prepare the settlement and release agreement.

If this proposal is acceptable, please confirm via reply email. If you can find PDF fillable tax forms (generally available on www.irs.gov), please send to me as well and I can prepare a release agreement.

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1000018813.JPG

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Fri, Jul 10 at 2:04 PM
To: Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com>

Mr. Yarbrough,

Thank you for your email and for increasing your settlement offer to $35,000.00.

I accept your proposal to fully and finally resolve all claims in this matter on the following terms:

- Total settlement amount: $35,000.00
- $10,000.00 as lost wages (less applicable tax withholdings)
- $25,000.00 as compensatory damages
- Payment to be made by wire transfer within 7 business days of my execution of the settlement and release agreement.

I agree to a complete release, waiver of any rights to seek re-employment with Pilot, and confidentiality.

Please prepare the settlement and release agreement. I will promptly provide:

- My updated address
- Completed W-4 (for the lost wages portion)
- Completed W-9 (for the compensatory damages portion)

Thank you for working with me to resolve this matter.

Sincerely,

Brendan Ngwa Nforbi

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Jon Yarbrough <Jon.Yarbrough@pilottravelcenters.com> Fri, Jul 10 at 2:06 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

I will work up an agreement.

Jon

> **Jon Yarbrough**

Director, Associate General Counsel, Employment Law
Jon.Yarbrough@pilottravelcenters.com
cell: 865-722-4110
5508 Lonas Drive / Knoxville, TN 37909

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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Friday, 10 July 2026 17:04:43
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